

FORMAL GRIEVANCE LETTER

Date: 28th May 2026

To,

The Senior Branch Manager / Grievance Redressal Officer
The Oriental Insurance Company Limited
DADAR DO (Issue Office Code: 132900)
Lakshmi Commercial Centre, Senapati Bapat Marg, Dadar West, Mumbai – 400028

CC:

1. Agent: SMT. A. A. KARMALKAR (Agent Code: BA0000037661)
2. Development Officer: MRS. PRACHITTEE GAWADE (Code: NY0000000012)

Subject: Request for Urgent Revival of Lapsed Health Insurance Policy No: 132900/48/2026/9052 with Continuity Benefits and Processing of Medical Claim for Senior Citizen

Respected Sir/Madam,

I am writing to formally lodge an urgent grievance regarding the unfair lapse of our family's long-standing health insurance policy, Policy No: 132900/48/2026/9052, held by my father, DR. JAGDISH N. NANAVATI, aged 78 years (DOB: 26/02/1948).

My father is a senior citizen and a loyal policyholder with Oriental Insurance, maintaining uninterrupted continuity for 14 consecutive years since 28-FEB-2012.

For the policy renewal period starting 28/02/2026, we acted in complete good faith and issued Cheque No: 1085009636 on 10/02/2026 for the gross premium amount of Rs. 28,199/-.

We have recently been shocked to discover that the cheque was returned due to an internal administrative/KYC-related issue. Crucially, neither Oriental Insurance nor our bank sent any SMS, email, written letter, or phone call notifying us of the cheque return or the impending policy lapse during the grace period.

Further, throughout this period, the servicing agent informed us that the policy continued to appear as "ACTIVE" on the official Oriental Insurance portal available to him. Given our long-standing relationship with the agent and his reliance on the information displayed in Oriental Insurance's own systems, we had absolutely no reason to suspect any renewal or payment issue.

Further, during this period we remained in regular contact with the servicing agent regarding my father's medical treatment. We had specifically approached the agent to understand the procedure for availing cashless hospitalization benefits under the policy and thereafter also submitted documents for reimbursement processing. Throughout these interactions, the agent continued to treat the policy as active and guided us regarding claim-related procedures. Even on the day the issue came to light, the agent informed us that the policy had been showing as "ACTIVE" on his portal until he became aware of the lapse status. At no point during these discussions, submissions, or follow-ups were we informed that the policy had lapsed or that any renewal payment issue existed. Had such information been communicated to us, we would have immediately rectified the situation.

My father recently required medical treatment, and upon approaching the TPA, M/S MD India Health Insurance TPA Pvt. Ltd. (TPA ID: YA0000000334), we were informed for the first time that the policy had been marked as lapsed.

As per established insurance and consumer protection principles, a long-standing policy, especially for a vulnerable 78-year-old senior citizen, should not be silently lapsed without proper written communication or notice following a cheque dishonour.

Further, since the information available to the servicing agent through the official Oriental Insurance portal indicated that the policy was active, and no contrary communication was ever issued to us, we were

prevented from taking corrective action during the grace period despite having a clear bona fide intention to renew the policy and maintain uninterrupted coverage.

Considering my father's advanced age, his 14-year uninterrupted history with Oriental Insurance, and the fact that a previous major claim of Rs. 1,83,456/- was successfully settled under the preceding year's policy (Claim No: 132900/48/2026/00000502), we sincerely request your immediate intervention and relief in this matter.

We respectfully request:

1. Revival of Policy No: 132900/48/2026/9052 with continuity benefits intact.
2. Restoration of all accumulated continuity benefits, including waiting period continuity, pre-existing disease coverage continuity, and cumulative benefits earned over the last 14 years.
3. Permission to immediately pay the pending premium amount of Rs. 28,199/- through any payment mode prescribed by your office.
4. Direction to MD India TPA to process the ongoing medical reimbursement claim under the applicable Sum Insured.

Kindly provide us with a formal grievance registration number upon receipt of this letter.

We are ready to provide any further information or documents required by your office, and the concerned agent already has access to the complete policy details and records.

Thanking you.

Yours sincerely,

Dr. Jigisha Shah
(Daughter of the Insured)

Fwd: Grievance Regarding Lapsed Health Insurance Policy No. 132900/48/2026/9052 – Request for Revival and Acknowledgement  Summarize this email

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

----- Forwarded message -----

From: **Pratik Shah** <pratikshah83@gmail.com>

Date: Tue, 2 Jun, 2026, 7:37 pm

Subject: Grievance Regarding Lapsed Health Insurance Policy No. 132900/48/2026/9052 – Request for Revival and Acknowledgement

To: <kitti.singla@orientalinsurance.co.in>

Cc: <anushreekarmalkar@yahoo.com>, <complaints@irdai.gov.in>, Jigi <drjigishapshah@gmail.com>

Dear Sir/Madam,

Please find attached our formal grievance letter regarding the lapse of Health Insurance Policy No. 132900/48/2026/9052 issued in the name of Dr. Jagdish N. Nanavati, along with supporting documentation received from the bank.

As detailed in the attached representation, the policyholder has maintained uninterrupted coverage with Oriental Insurance for the past 14 years and had issued the renewal premium cheque in good faith. We respectfully request your urgent intervention for revival of the policy with continuity benefits intact and processing of the pending medical claim.

We request that this email be treated as a formal grievance and kindly ask you to acknowledge receipt of the same.

Further, please provide the official Grievance Registration Number / Complaint Reference Number generated against this representation for our records and future correspondence.

We shall be grateful for an early review of the matter considering the insured is a 78-year-old senior citizen and the issue relates to ongoing medical treatment and reimbursement.

Thank you for your attention and assistance. We look forward to your acknowledgement and response.

Regards,

Dr. Jigisha Shah
Daughter of Dr. Jagdish N. Nanavati

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 Reply  Forward

Fwd: Claim Intimation under policy no 132900/48/2026/9052 of Dr Jagdish N Nanavati  Summarize this email

Forwarded message
From: **Pratik Shah** <pratikshah83@gmail.com>
Date: Fri, 12 Jun, 2026, 12:55 pm
Subject: Re: Claim Intimation under policy no 132900/48/2026/9052 of Dr Jagdish N Nanavati
To: Jigisha Shah <drjigishapshah@gmail.com>, <kitty.singla@orientalinsurance.co.in>, <anushreekarmalkar@yahoo.com>, <customercare@mdindia.com>, 132900 <132900@orientalinsurance.co.in>, <sgurav@mdindia.com>

Dear Sir/Madam,

We acknowledge your email stating that the policy stands cancelled due to a cheque dishonour. We strongly contest this position. The fault lies entirely with the operational and communication failures of Oriental Insurance and its authorized agent, not the policyholder.

Please note our formal legal counter-response to your contentions:

- 1. Contradiction Regarding System Records:** Your statement that there is "*no record of a new policy generated*" is factually incorrect and falsified by your own system outputs. We hold the official, system-generated **Policy Schedule to Pay Premium** for Policy No: 132900/48/2026/9052, which was generated by your database backend on **12/02/2026 at 10:14:14 IST**. The generation of this official schedule with a dedicated policy number proves your system acknowledged and processed the renewal transaction upon receipt of our cheque.
- 2. Legal Estoppel via Agent App & System Output:** Because your system generated this formal schedule and your authorized agent's official Oriental Insurance application interface continually displayed the status of this policy as "**ACTIVE**" throughout February, March, and April, any reasonable consumer would conclude the premium was realized. Under **Section 237 of the Indian Contract Act**, the principal (Oriental Insurance) is legally bound by the representations made by its agent and its software platforms. Your systems actively misled us, directly preventing us from taking corrective payment actions during the 30-day grace period.
- 3. Proof of Intimation Demanded:** Your email states the cancellation was "*intimated to you.*" Under settled consumer law, the mere generation of an automated outbound alert is legally insufficient. Please provide the physical **Registered Post Acknowledgement Due (RPAD)** receipt or electronic delivery logs proving that a statutory cancellation notice was successfully delivered to the 78-year-old policyholder in February 2026. A silent system cancellation without verified delivery of notice violates settled consumer law (*State Bank of India v. Nakul Chandra Ghosh*). [2]
- 4. Bona Fide Intent:** The premium was submitted in good faith well before the due date, and our bank account held a sufficient balance, proving there was no willful default.

Denying medical cover to a vulnerable 78-year-old senior citizen with a **14-year unblemished renewal history** due to your internal administrative errors constitutes a gross **Deficiency of Service**.

We are ready to clear the premium amount of Rs. 28,199/- via cash or demand draft immediately. If the policy is not retroactively revived with continuity benefits to clear our current medical claim within **3 business days**, we will escalate this entire trail to the **IRDAI Bima Bharosa Portal** and file a formal case with the **Insurance Ombudsman (Mumbai)** entirely at your company's legal risk and cost.

Yours sincerely,

Dr Jigisha Shah
(On behalf of Dr. Jagdish N. Nanavati)
Mobile: 9930203893 / 9969028110

On Fri, 12 Jun, 2026, 12:09 pm Jigisha Shah, <drjigishapshah@gmail.com> wrote:

----- Forwarded message -----
From: **Kitty Singla** <kitty.singla@orientalinsurance.co.in>
Date: Wed, Jun 10, 2026, 10:57 AM
Subject: Re: Claim Intimation under policy no 132900/48/2026/9052 of Dr Jagdish N Nanavati
To: <anushreekarmalkar@yahoo.com>
Cc: MDINDIA <customercare@mdindia.com>, Santosh Gurav, Client Servicing / MDIndia / Mumbai Branch <sgurav@mdindia.com>, 132900 <132900@orientalinsurance.co.in>, Dr jigisha Shah <drjigishapshah@gmail.com>